

papers submitted by Plaintiff Caruso, it appears that the obligation secured has been satisfied, and therefore Defendant Filho must release the deed of trust and assignment of rents.

Plaintiff's Motion is **Granted**. The Court will not take any further action relating to *judgment* at this time, as that is not properly before the Court.

18. 9:00 AM CASE NUMBER: C25-02669

CASE NAME: CORINNE REES VS. SAMIR ROHAYEM

***HEARING ON MOTION FOR DISCOVERY COMPEL PRODUCTION OF DOCUMENTS**

FILED BY: ROHAYEM, SAMIR

TENTATIVE RULING:

Defendants Samir Rohayem, Michel Rehayem, and ZMoonos, LLC have filed a Motion to Compel Production of Documents and Request for Sanctions. Plaintiff Corinne Rees opposes the motion and notes that documents have been produced. Although the instant motion is, in many ways, relatively simple, it sits in the context of a case that is far more complicated below the surface. That complexity is relevant at the very least to the dueling requests for sanctions and so the Court will address those issues to the best of its ability.

The instant case was filed on September 17, 2025. On October 23, 2025, Defendants moved for Mandatory Trial Setting Preference Pursuant to California Code of Civil Procedure 36. Plaintiff did not object. That Motion, itself subject to a request to expedite, was heard and granted January 27, 2026.⁶ At that time, the Court gave a trial date of April 6, 2026.

On November 21 and 24, 2025, Defendants served discovery on Plaintiff, including a Request for Production of Documents. Plaintiff requested, and Defendants granted an extension for responses to January 13, 2026. On that date, counsel for Defendants sent a letter to counsel for Plaintiff noting non-receipt of responses. At some point that same day, Plaintiff did indeed serve responses with objections but also indications that "Responding party will comply with this request." Additional similar responses on an additional set of requests were served January 21, 2026. The Court has no record of any communication between the parties—in either direction—between January 13, 2026 and February 3, 2026 aside from that letter and the discovery responses mentioned immediately above.

It is notable that in the middle of this time, the earlier-filed motion relating to trial preference was granted and a trial date was set. It does not appear to the Court that Defendants raised this ongoing discovery dispute to the Court to factor into trial setting.⁷ It is the urgency of the trial date—and its corresponding imminent discovery deadline—that Defendants note in their Reply briefing as being at least partially responsible for their need to proceed to Motion quickly.

On February 3, 2026, Defendants filed the instant motion. By declaration, they averred—and

⁶ The order was entered March 5, 2026.

⁷ This Court has now taken over the docket of the prior judicial officer who handled that Motion and no notes, minute orders, or transcripts reflect a discussion of pending discovery disputes.

Plaintiff does not dispute—that they had received no documents responsive to their discovery requests. The hearing on the motion was advanced to March 12, 2026.

On February 12, 2026, approximately one month after serving written responses to the Requests, Plaintiff produced documents. Plaintiff argues that Defendants failed to meet and confer adequately and rushed to file this motion. Defendants respond that no meeting and conferring was required, pursuant to Code of Civil Procedure 2031.320.(a). Defendants are correct. At no time does it appear that Plaintiff (a) indicated when she would produce documents, (b) responded to Defendants' January 13 letter regarding the lack of documents, or (c) indicated that she needed more time to gather or review documents for production. Unless there is correspondence of which the Court is unaware, the entirety of the communication on this issue was the January 13 letter demanding immediate compliance with discovery obligations, written discovery responses, service of motion papers, and production of documents on February 12, 2026.

Before getting to the sanction issue, the Court will address what remains of the initial motion. It does appear that Plaintiff has *now* produced almost all responsive documents. Defendants' Reply identifies only one area of responsive documents that is lacking: decedent Gregory Schoepp's phone so that they can inspect its contents. It appears that the phone is in Plaintiff Corinne Rees's actual possession and that discussions to convey the phone for extraction have occurred but not yet yielded the actual phone. Absent any indication from Plaintiff that the telephone is outside the scope of permissible discovery, **it must be produced immediately** *either* to Defendants' expert or to a mutually agreed-upon third party vendor for extraction.

Finally, both parties have sought sanctions. Defendants request \$6,902 (\$3,570.00 + \$3,332.00) for work on the Motion and Reply, stating that Plaintiff's non-compliance with her obligations and opposition to the Motion have forced Defendants to incur unnecessary work in that amount. In turn, Plaintiff requests sanctions in the amount of \$4,400, stating that Defendants' rush to file resulted in an unnecessary Motion where the parties could have resolved the issue without court intervention.

To agree with Plaintiff, the Court must find that Defendants should have made more of an effort at resolution prior to filing. "An evaluation of whether, from the perspective of a reasonable person in the position of the discovering party, additional effort appeared likely to bear fruit, should also be considered. Although some effort is required in all instances, the level of effort that is reasonable is different in different circumstances, and may vary with the prospects for success." (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 432–433 (internal citation omitted).) While the Court sympathizes that Defendants seem to be operating on an extremely short timeline—some of which is by Defendants' own creation in advancing a trial date without leaving any room for discovery disputes—it also appears that Plaintiff's radio silence and lack of communication have led Defendants to believe they must take action to get any relief.⁸ In the context of what the Court has before it, a

⁸ Defendants have submitted a Request for Judicial Notice regarding certain previous filings in prior cases between the parties. The Supplemental Declaration of Ian Hansen also contains facts relating to this prior history between the parties. The Court suspects that Judicial Notice is proper, but will wait to see whether this tentative ruling is contested and whether Plaintiff objects to the RFJN before ruling on it. Nevertheless, the Supplemental Declaration is sufficient information for the Court to glean all it truly needs to know to move forward on *this* motion, which is

reasonable sanction on Plaintiff is appropriate, but that sanction will not be the full amount requested by Defendants. Under the totality of the circumstances and the limited nature of what is being considered and ordered, the Court **will award sanctions against Plaintiff Corinne Rees and her counsel jointly in the amount of \$3,500.**

Defendants' Motion is therefore **granted.**

19. 9:00 AM CASE NUMBER: C25-02683
CASE NAME: ASCENT INVESTMENTS COMPANY LLC VS. PREMDIP DHOOT
HEARING IN RE: APPLICATION AND HEARING FOR RIGHT TO ATTACH ORDER AND ORDER FOR
ISSUANCE OF WRITE RE: HD 2670 WALNUT BLVD MEMBER, LLC AND PREMDIP S. DHOOT FILED BY:
ASCENT INVESTMENTS COMPANY LLC
FILED BY:

TENTATIVE RULING:

Parties to appear. The applications are conditionally granted, as discussed below. Prior to the hearing, plaintiff shall re-file a signed copy of the Declaration of Jason Steinle in Support of the Reply, originally filed on January 16, 2026 and again filed on March 4, 2026, both unsigned. Should plaintiff require additional time to file, a continuance will be discussed at the hearing.

Background

Before the Court are two applications by plaintiff, Ascent Investments Company, LLC, to attach property of defendant, HD 2670 Walnut Blvd Member, LLC and its member and manager, defendant Premdip S. Dhoot.

This case arises from a loan by plaintiff to defendant, HD 2670 Walnut Blvd Member, LLC. On August 24, 2022, defendant, Premdip S. Dhoot, signed a promissory note on behalf of HD 2670 Walnut Blvd Member, LLC. The note was for the principal amount of \$200,000, to be re-paid, along with an additional \$48,328.77 "Lender's Return," by January 1, 2024 ("Maturity Date"). (See Declaration of Jason Steinle in Support of Application for Right to Attach Order and Writ of Attachment, hereinafter "Steinle Decl.," Ex. 1 [Promissory Note] and Ex. 2 [Payment Guaranty].)

The complaint alleges five causes of action (though a numbering error might lead one to believe there are four): (1) Breach of Written Promissory Note, (2) Breach of Guaranty Agreement, (3) Account Stated, (3) Money Lent; and (4) Money Paid, Laid Out, and Expended. The second cause of action is alleged against Dhoot and the others are against HD 2670 Walnut Blvd Member, LLC.

Plaintiff contends defendants refuse to comply with their repayment obligations and intend to sell the properties it seeks to attach here. Plaintiff contends defendants are likely to conceal any proceeds from the sales to prevent plaintiff from levying on such proceeds. Plaintiff attaches an email sent on September 16, 2025 demanding payment by the next day at 5:00 p.m. Plaintiff then filed this action on September 18, 2025. (See Steinle Decl., Ex. 3 [demand email].) In November 2025, plaintiff filed the present application for right to attach order and order for writ of attachment.

that there is a history between these parties and Defendants expeditious behavior—both with respect to seeking trial preference and with bringing this motion sooner than most attorneys would—arrives in the context of substantial delays in investigating and resolving these parties' disputes.